

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of

Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration-ecce-2022)

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](https://uis.unesco.org)

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: Iceland

Organization or entity responsible for the preparation of the report: Ministry of Education and Children

Name of contact person: Guðni Olgeirsson

Email and telephone number of contact person: gudni.olgeirsson@mrn.is. +354 8617354

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☒ Yes ☐ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

☒ Yes ☐ No

¹⁰ <https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

¹¹ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

☐ Yes: Have the provisions of the Convention been invoked?

☐ Yes ☒ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

Supreme Court of Iceland, decision nr. 177/1998 on the rights of a blind person to educational services at the University of Iceland. The Court references Act on the Protection of the Rights of Disabled Persons, No. 59/1992 and The European Convention on Human Rights (Act no. 62/1994 on The European Convention on Human Rights in Iceland).

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

It further corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☒ Yes ☐ No

- If yes, please provide reference:

The rights and principles have been laid out in the following legislation:

- Act No. 90/2008 on Pre-schools
- Act No. 91/2008 on Compulsory Schools
- Act No. 92/2008 on Upper Secondary Schools
- Act No. 63/2006 on Higher Education
- Adult Education Act No 27/2010
- Act No. 86/2021 on the Integration of Services in the Interest of Children’s Prosperity
- Act No. 38/2018 Act on Services for Disabled People with Long-term Support Needs
- Act No 85/ 2018 on Equal Treatment irrespective of Race and Ethnic Origin (Act on Equal Treatment Outside the Labour Market)
- Act No. 60/2020 on Student Education Fund.
- Act No. 150/2020 on Equal Status and Equal Rights Irrespective of Gender, No. 150/2020

¹²

Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

- The 2011 National Curriculum Guide for Pre-Primary-, Compulsory and Upper-Secondary Schools.
- The Icelandic Government incorporated the United Nations (UN) Convention on the Rights of the Child (1992) into Icelandic law in 2013 and adopted the Salamanca Statement (1994) and the Dakar Declaration on Education for All (2000).
- Implementation of the UN Convention on the Rights of the Child adopted by the Parliament, Child friendly Iceland (Barnvænt Ísland).

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

☒ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education:

☒ In pre-primary education (including early learning and care)

☒ In primary education

☒ In secondary education

☒ In technical and vocational education and training

☒ In higher education

☐ In adult education and alternative learning

- Please indicate the relevant legal provisions:

- Act No. 90/2008 on Pre-schools
- Act No. 91/2008 on Compulsory Schools
- Act No. 92/2008 on Upper Secondary Education
- Act No. 63/2006 on Higher Education
- Act No 85/ 2018 on Equal Treatment irrespective of Race and Ethnic Origin (Equal Treatment Outside the Labour Market)
- Act no. 62/1994 on The European Convention on Human Rights
- Iceland has ratified the UN Convention on the Rights of Persons with Disabilities (UNCPRD).

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

- Constitution of Iceland; Article 76: The law shall guarantee for everyone suitable general education and tuition.

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

- Act No. 90/2008 on Pre-schools; Article 2: Preschools should operate in a manner characterised by tolerance and charity, equality, democratic cooperation, responsibility, consideration, forgiveness and respect for human worth,

- Act No. 91/2008 on Compulsory Schools; Article 13 states: All pupils in compulsory schools shall be entitled to receive suitable instruction within an encouraging study environment and in appropriate premises adapted to their needs and general well-being. Each compulsory school shall in all respects organise its work so as to allow pupils to feel safe and develop their abilities. Pupils have the right to enjoy the benefit of their childhood in all school work.

- Act No. 92/2008 on Upper Secondary Schools, Article 2: The role of upper secondary schools is to promote the all-round development of all students and their active participation in democratic society by offering studies suiting the needs of each student.

- Act No. 63/2006 on Higher Education; Article 19: Higher education institutions shall make provisions to ensure that teaching and special pedagogic support is available to students who have a disability and to students with emotional or social difficulties. The institutions shall provide expert assistance and make appropriate facilities available as needed. Wherever possible, students with disabilities shall pursue their studies in the same venues as other students. Moreover, higher education institutions shall strive to provide special support to students with specific learning difficulties or suffering from an illness.

- Act No 85/ 2018 on Equal Treatment irrespective of Race and Ethnic Origin (Equal Treatment Outside the Labour Market); Article 10: *Prohibition against discrimination in schools and pedagogical establishments.*

☐ In schools and other educational and pedagogical establishments any kind of discrimination based on race or ethnic origin is prohibited. This prohibition must be observed in teaching and studies, in working methods and in day-to-day dealings with pupils.

☐ Educational and teaching material shall not contribute to discrimination based on race or ethnic origin and shall not display persons of a particular race or ethnic origin in a disrespectful or belittling manner.

☒ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

☒ In pre-primary education (including early learning and care)

☒ In primary education

☒ In secondary education

☒ In technical and vocational education and training

☒ In higher education

☒ In adult education and alternative learning

- Please provide details:

- Education Policy 2030 , defines “equal opportunities for all” as one of its five pillars:

<https://www.stjornarradid.is/verkefni/menntamal/menntastefna/>

- Following the legislation on Integration of Services in the Interest of Children’s Prosperity a process of implementation has involved several projects and the establishment of two new institutions: National Agency for Children and Families and Directorate of Education and School Services, see: <https://www.farsaeldbarna.is/>

Action plan on the implementation of the UN Convention on the Rights of the Child (Child Friendly Iceland) defines several actions and lays the groundwork for integral policy and coordination across administrative units with a specific role for the Ombudsman for Children: <https://www.althingi.is/altext/151/s/1702.html>

☒ Combatting discrimination in terms of curriculum:

☒ In pre-primary education (including early learning and care)

☒ In primary education

☒ In secondary education

☒ In technical and vocational education and training

☐ In higher education

☐ In adult education and alternative learning

- Please provide details:

The National Curriculum Guide contains the framework and conditions for learning and teaching, based on the principles of existing laws, regulations and international conventions. Six fundamental pillars have been developed within this framework and they form the essence of the educational policy. They include the working methods, content and learning environment at each school level and form important continuity in the Icelandic education system. These pillars are literacy, sustainability, equality, creativity, health and welfare, and democracy and human rights.

The Education for All policy is emphasised in the National Curriculum Guides for Pre-School, Compulsory School and Upper-Secondary School. The Curriculum Guides ensure conformity of objectives across all three levels of schooling. In developing the National Curriculum Guides, in the organisation of study lines and the production and selection of study materials, special efforts were made to ensure that the opportunities for study available to all learners were as equal as possible.

The objectives of teaching and learning and the working practices of pre-primary, compulsory and upper-secondary schools are to prevent discrimination based on origin, gender, residence, class, religion or disability. All school activities are to take into account learners’ varied personalities, talents, abilities, interests and levels of maturity.

According to the Pre-School Act, Compulsory School Act and Upper-Secondary Education Act, each school is obliged to produce a working guide (school curriculum) which is based on the National Curriculum Guides, but gives the school an opportunity to take its circumstances and special characteristics into account. The

working guide is an administrative plan for each school and shall include how the school is going to meet learners' special needs.

☒ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

In Iceland there is an active sphere of organised leisure, sport and youth activities. Mostly run by the municipalities for the compulsory school level Leisure Centers provide services for young children after school and Youth Centres are operated for older children. These Centres are coordinated with the schools and cooperate with them. The municipalities also support childrens' participation in sports and subsidies fees for enrolling in training programmes run by sports clubs. This facilitates the participation of children independent of their background or family income.

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- | | |
|--|--|
| ☒ Legislation provides for inclusive education for all | ☒ Multiple and flexible learning pathways ¹⁷ are provided for |
| ☒ Policy measures aim to enhance inclusion in education for all | ☒ Curricula and teaching methods are inclusive in design ¹⁸ |
| ☒ Teachers are trained on inclusive education ¹⁶ and to value diversity | ☒ Multilingual and intercultural education is supported |
| ☒ Initiatives to address discrimination and promote cultural diversity and mutual acceptance | |
| ☐ Other: | |

¹⁶ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

¹⁷ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The legal framework pertaining to education at the compulsory (primary and lower-secondary education) and upper secondary levels in Iceland defines 'education for all' as a fundamental principle. The Education Policy 2030, which was adopted in 2021, also explicitly stipulates 'equal opportunities for all' as one of its five pillars and focuses on actions to serve multicultural school populations and to foster diversity and inclusion.

Human rights are taught in a cross-curricular manner and feature mostly in "social studies". As an educational outcome of this subject, it is expected that "the pupils are able to discuss the values of equality and human rights in all areas of society as well as the influence of stereotypes and know general provisions on human rights.

In the year 2017 the Ministry of Education started cooperation with the European Agency for Special Needs and Inclusive Education to analyse the status of inclusive education in Iceland and to recommend reforms. The Agency performed an external audit of the Icelandic system for inclusive education and made recommendations for reforms. See: (https://www.stjornarradid.is/media/menntamalaraduneyti-media/media/frettatengt2016/Final-report_External-Audit-of-the-Icelandic-System-for-Inclusive-Education.pdf).

Since then the Government has worked on the implementation of reform based on the audit, f.ex. working with the municipalities to revise their budgeting system for schools to take into account diverse needs and inclusion.

The Minister of Education and Children has introduced a law proposal on inclusive education before the Parliament that details the services schools and municipalities are to provide for students. In this law proposals legal rights for services supporting inclusion are also extended to the upper-secondary level. A newly established Directorate for Education and School Services is to play an important role in providing and coordinating these services.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

In few years the percentage of students of foreign origin has more than doubled. Between 2013 and 2023 the percentage of students in compulsory schools with a mother tongue other than Icelandic increased from 6,5% to 15,5%. This has put a lot of stress on the education system to ensure non-discrimination and equal opportunities to these children many of whom are recent immigrants and refugees.

Adjusting teacher initial education and their continuing professional development to the needs of inclusive education is a continuing challenge. A shortage of teachers has been a persistent problem. The percentage of licenced teachers has declined in recent years and is now around 25% at the pre-primary level, 85% at the compulsory level and 88% at the upper-secondary level. Due to a successful initiative by the government the number teacher graduates, however, increased by 175% between the years 2019 and 2022.

Providing adequate school services to support inclusion has also been a challenge. In particular smaller municipalities have had problems providing adequate services. Following a recent

legislation on the Prosperity of Children the coordination and provisions of these services has been greatly improved and the role of the state in this field extended.

Other relevant general measures, including gender equality

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|--|---|
| ☒ Legislation provides for gender equality in education | ☒ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education |
| ☒ Policy measures aim to enhance gender equality | ☐ Re-entry programmes for young mothers are provided for |
| ☒ Gender-responsive education sector planning is undertaken | ☒ Ensuring safe and adequate gender-sensitive sanitation facilities ²⁰ |
| ☒ Providing positive or affirmative action measures | ☒ Curricula are rid of all stereotypes ²¹ and bias |
| ☐ Providing financial incentives and fellowships | ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM) |
| ☒ Teachers are trained (initial and in-service) on gender equality | ☒ Ensuring gender parity in technical and vocational training education and training (TVET) |
| ☒ Teachers are trained to combat stigmatisation ¹⁹ | |
| ☐ Other: | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

In legislation on all the school levels from pre-primary to higher education equal rights of students to education irrespective of gender and origin are ensured. Various initiatives to ensure the inclusion of different genders in schools have taken place.

Iceland has enacted legislation on gender equality with the [Act on Equal Status and Equal Rights Irrespective of Gender, No. 150/2020](#). The objective of the Act is to prevent discrimination on the basis of gender and to maintain gender equality and equal opportunities for the genders in all spheres of society. The Prime Minister's Office is responsible for enforcing the Act. The Directorate of Equality is a special institution under the administration of the Prime Minister that supervises the implementation of the Act, provides advice, public education and information concerning gender equality.

Every four years, the Minister for gender equality must submit a motion for a parliamentary resolution on a four-year gender equality action plan after having received proposals made by the ministries and after consultation with the Directorate of Equality. Discussions at the Gender Equality Forum must also be taken into account. The gender equality action plan shall include projects intended to secure equal status and equal rights for the genders in Icelandic

¹⁹ ' Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

²⁰ ' Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

²¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

society. Responsibility for projects and the estimated costs shall be specified in the action plan, as well as the method to be used to evaluate the results of the actions taken.

Iceland has ratified the UN Convention on the Elimination of All Forms of Discrimination against Women and the Government is cooperating with UN Women Iceland on its implementation.

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

The gender gap in educational attainment has increased during the last decades. In 2022 54% of women age 25-64 had a university degree, but only 33% of men. About 2/3 of university students are now women. Boys also do significantly worse than girls in reading, mathematics and science on the lower-secondary level according to international assessment (PISA). At the same time research shows that 40% of girls and 15-20% of boys at the end of lower-secondary level suffer from anxiety and depression.

- Does the legal minimum age for marriage conform to international standards (18 years) ²²:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☒ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

According the Marriage Act No. 31/1993

(see: <https://www.althingi.is/lagas/nuna/1993031.html>) the legal minimum age for marriage is 18 years. All exceptions to this rule were abolished in an amendment to this law in 2010.

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

☒ Legislation provides for the right to education of national minorities

☒ Teachers are trained on intercultural education

☐ Policy measures aim to enhance the right to education of national minorities

²²

Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

- | | |
|---|--|
| ☒ Policy elaboration includes consultations with local communities
☒ The right to carry out their own educational activities is legally guaranteed for national minorities
☒ Educational standards are established for educational institutions run by national minorities
☐ Positive or affirmative action measures are provided for national minorities
☐ Financial incentives and fellowships are provided for national minorities
☐ Other ²³ : | ☒ Teachers are trained to combat stigmatisation ²⁴
☐ Multilingual and intercultural education are supported
☐ Native language instruction is ensured for national minorities
☐ Adapting curricula and teaching and learning methods to their needs for national minorities
☒ Curricula are rid of all stereotypes ²⁵ and bias |
|---|--|

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

In 2018, the Icelandic Parliament enacted Act No. 86/2018 on Equal Treatment in the Labour Market and Act No. 85/2018 on Equal Treatment irrespective of Racial and Ethnic Origin (Equal Treatment Outside the Labour Market). The law was later extended to include discrimination grounds, such as religion or belief, sexual orientation, gender identity, gender expression and sex characteristics. This Act applies to education.

Iceland has ratified the Council of Europe's Framework Convention for the Protection of National Minorities. Also Iceland has also ratified the original European Social Charter.

Iceland introduced in 2023 an update of the National Curriculum Guide for pre-primary schools with regulation 897/2023. The overarching purpose of the changes were to increase the focus on the role of play in early childhood education but amongst guidelines to teachers in ECEC settings. There are also clearer guidelines toward the professional duty of the pre-primary teacher in promoting multilingualism. They are to put focus on respecting diverse languages and look for ways to support mother tongue and active multilingualism in play and daily work.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

Historically Iceland has had a homogeneous population with hardly any minorities and no ethnic minorities. This may be changing in recent years due to increasing immigration and number of people of different origin living in the country with diverse language and cultural background. Awareness of the rights and equal treatment of minorities is limited as this has not been much part

²³ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.
²⁴ Supra note 15.
²⁵ Supra note 16.

of public debate. In recent years there has been an increase in numbers of asylum seekers that has put pressure on the system, including the educational system.

Indigenous people:

- | | |
|--|--|
| ☐ Legislation provides for the right to education of indigenous people | ☐ Financial incentives and fellowships are provided for indigenous people |
| ☐ Policy measures aim to enhance the right to education of indigenous people | ☐ Teachers are trained on intercultural education |
| ☐ Policy elaboration includes consultations with local communities | ☐ Teachers are trained to combat stigmatisation ²⁶ |
| ☐ The right to carry out their own educational activities is legally guaranteed for indigenous people | ☐ Multilingual and intercultural education are supported |
| ☐ Educational standards are established for educational institutions run by indigenous people | ☐ Native language instruction is ensured |
| ☐ Positive or affirmative action measures are provided for indigenous people | ☐ Adapting curricula and teaching and learning methods to their needs for indigenous people |
| ☐ Other: | ☐ Curricula are rid of all stereotypes ²⁷ and bias |

There are no defined indigenous people in Iceland.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸:

- | | |
|---|--|
| ☒ Legislation provides for their right to education | ☐ Financial incentives and fellowships are provided for |
| ☒ Policy measures aim to enhance their right to education | ☒ Auxiliary assistance is provided |
| ☒ Inclusion in mainstream schools is ensured | |

²⁶ Supra note 15.

²⁷ Supra note 16.

²⁸ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

- | | |
|---|---|
| ☒ Positive or affirmative action measures are provided for | ☐ Multiple and flexible learning pathways ³¹ are provided |
| ☐ All administrative barriers to access education are removed | ☒ Curricula are rid of all stereotypes ³² and bias |
| ☒ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers ²⁹ are provided for | ☐ Accelerated learning programmes are provided |
| ☒ Teachers are specifically trained to ensure their inclusion | ☒ Non-formal and/or alternative education programmes are provided |
| ☒ Teachers are trained to combat stigmatisation ³⁰ | ☒ Language classes to newcomers are provided for |
| ☐ Other: | ☐ Multilingualism and intercultural education are encouraged |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

A Foreign Nationals Act No 80/2016 sets the general framework for the rights of people on the move. A regulation based on the law states the rights of children on the move 18 years or younger to education. An implementation Plan is to ensure accessibility for immigrants to public service institutions both at national and local levels and that the provision of services meet their needs. This Implementation Plan was based on five pillars: society, family, education, the labour market and refugees.

The [Act on the education, competency and recruitment of teachers and school leaders of preschools, compulsory schools and upper secondary schools no. 95/2019](#) introduces competency framework which entails criteria for teachers and school leaders. A [regulation](#) on the competency framework explicitly mentions that teachers are to support the prosperity of children, inclusion and combat stigmatization.

The National Curriculum Guide for pre-primary, compulsory and upper-secondary education defines the essence of the educational policy in Iceland put specific emphasis on democracy and human rights as on of the foundational pillars for education.

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☒ No

- Please elaborate:

²⁹ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

³⁰ Supra note 15.

³¹ Supra note 13

³² Supra note 16.

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

The increasing number of people and children on the move has put pressure on the Icelandic education system to meet the needs of this diverse group. There has been a lack of knowledge and resources on how to integrate children of foreign origin into the school system particularly regarding the teaching of Icelandic as a second language, the mother tongue and meeting the diverse and complicated needs of this group of children. Also there is a difference between municipalities in their capacities to provide services such as reception and language support.

Recently the Government has initiated a project to strengthen and coordinate the services for children of foreign origin in schools with cooperation between the state and municipalities and among municipalities. The project is run by the Directorate for Education and School Services.

People with disabilities:

- | | |
|---|--|
| ☒ Legislation provides for their right to education | ☒ Mainstream teachers are specifically trained on disabilities |
| ☒ Policy measures aim to enhance their right to education | ☒ Teachers are trained to combat stigmatisation ³³ |
| ☒ Inclusion in mainstream schools is ensured | ☒ Auxiliary assistance is provided |
| ☒ Special schools are used as resource centers to inclusive schools | ☒ Curricula and teaching and learning methods are adapted |
| ☒ Positive or affirmative action measures are provided | ☒ Curricula are rid of all stereotypes ³⁴ and bias |
| ☒ Financial incentives and fellowships are provided | ☒ Education infrastructure and learning materials are adapted |
| ☐ Other | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The general principle for education of children with disabilities is mainstreaming. Children who, because of their disabilities or because of emotional or social difficulties, need special assistance or training, are entitled to appropriate support, in their home school in cooperation with the municipality or appropriate state institution.

Act No. 86/2021 on the Integration of Services in the Interest of Children's Prosperity defines the main rights of children in this area.

³³ Supra note 15.

³⁴ Supra note 16.

The Education Policy 2030, which was adopted in 2021, also explicitly stipulates 'equal opportunities for all' as one of its five pillars and focuses on actions to serve multicultural school populations and to foster diversity and inclusion.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

According to reports on the policy of inclusive education there is a need for more resources, improved professional development and support for schools and teachers, as well as more research to enable effective implementation. There is different understandings of inclusive education and a need for greater awareness of its meaning. There is a need for more systematic approach to the financing of inclusive education and a clarification of the roles and responsibilities of the State and Municipalities in this field.

Students from poor households:

- | | |
|--|---|
| ☒ Financial incentives and fellowships for school enrolment are provided | ☒ Teachers are trained to combat stigmatisation ³⁵ |
| ☐ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education | ☒ Curricula are rid of all stereotypes ³⁶ and bias |
| ☒ Positive or affirmative action measures are provided | |
| ☐ Other: | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

There are no pupils defined as pupils from disadvantaged backgrounds in the legislation on pre-primary schools, compulsory schools, nor the upper secondary schools. Decisions for special measures concerning pupils from disadvantaged background are taken at municipal level by local family services and school officials jointly.

[The Act on the education, competency and recruitment of teachers and school leaders of preschools, compulsory schools and upper secondary schools no. 95/2019](#) introduces competency framework which entails criteria for teachers and school leaders. A [regulation](#) on the competency framework explicitly mentions that teachers are to support the prosperity of children, inclusion and combat stigmatization.

³⁵ Supra note 15.

³⁶ Supra note 16.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

The Welfare Watch (Velferðarvaktin) is an independent analytical body and an observatory that submits proposals to the government and interest groups and follows up on them. The Welfare Watch in terms of education has identified the costs of learning materials (paper, pens etc), the costs of school lunches on the compulsory level and children's absenteeism from school as issues to be addressed. Partly due to the recommendations of the Welfare Watch all learning materials and school lunches are now provided for free on the compulsory level. The Watch has also made recommendations regarding lowering the costs of textbooks and learning materials on the upper-secondary level, but those proposals have not been realized yet.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized "the right to education during early childhood as beginning at birth" (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to "the provision of at least one year of free and compulsory pre-primary education".

- Please indicate the measures taken to ensure access to quality ECCE (*several items may be ticked*):

- | | |
|--|---|
| ☐ Prior to pre-primary education, ECCE services are free | ☒ ECCE services respect a child's need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play. |
| ☒ Prior to pre-primary education, ECCE services are affordable | |
| ☒ ECCE services are accessible on a non-discriminatory basis | |

- Please elaborate further on the measures taken:

Municipalities offer ECCE services for children from age 2 or younger. The services are subsidised, but most municipalities charge a fee per child. [The National Curriculum Guide for Pre-Schools](#) specifies education at this school level with an emphasis on play and a supportive environment for child's cognitive, social development. Per-primary schools are

³⁷ Which states that "ECCE is part of the right to education and the main foundation for holistic human development".
³⁸ Which commits states to "Enhance policy and legal frameworks to ensure that the right to education includes ECCE"

in co-operation with national health services and the social services of municipalities to care for nutrition, health and safety of children.

- Is compulsory and free of charge pre-primary education available?

☐ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

☒ Pre-primary education is **not** compulsory.

☐ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

☒ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

[The Pre-school Act](#) and the [National Curriculum Guide for Pre-schools](#) provide the framework for pre-primary education.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

☐ Limited access

☐ Poor learning outcomes

☐ Issues of equity and inclusion

☒ Low number of professionally trained educators

☐ Poor quality programmes

☐ Lack of support to families

☐ Other:

- Please elaborate. Brief quantitative information may be added.

There is a shortage of professionally trained educators at the pre-primary level, but currently percentage of qualified teachers at the pre-primary level is around 25%. Some municipalities have had problems securing access to all children from age 2.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on

States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

Compulsory education is a single structure system from age 6-16, 10 years and covers primary and lower secondary levels (ISCED 1 and 2).

- Is primary education compulsory and free of charge?

☒ Primary education is compulsory

☐ Primary education is **not** compulsory.

☒ Primary education is free of charge.

☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

[Compulsory School Act no. 91/2008.](#)

- What challenges were encountered in realizing primary education?

☐ Limited access

☐ Issues of equity and inclusion

☐ High dropout rates

☐ Poor quality programmes

☐ Other:

Poor learning outcomes in:

Foundation literacy

Numeracy

Social and emotional learning

Others

☐ Disparity in learning outcomes

☒ Low number of professionally trained teachers

- Please elaborate. Brief quantitative information may be added.

The percentage of professionally trained teachers at the compulsory level has declined from 94% in 2015 to 81% in 2023. Specifically shortage of teachers in STEM disciplines may negatively affect students' outcomes in this field.

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

Lower-secondary level is part of the compulsory school, which is single structure grades 1-10 and is run by the municipalities.

- Please provide the age of enrolment and duration of upper secondary education:

Upper-secondary education starts at age 16. It is not compulsory, but the state has the obligation to provide students with education until age 18 (fræðsluskylda). Everyone who has finished compulsory education, or equivalent, has the right to enter upper-secondary schools. Lines of study last from three (general academic programmes) to five years (VET). Around 98% of those who graduate from compulsory schools enter upper-secondary education. Approximately 63% have graduated within four years. Students have to fulfil competency criteria to start regular studies and some therefore register for preparatory programmes in upper-secondary schools.

- Is lower and upper secondary education compulsory and free of charge?

☒ Lower secondary education is compulsory.

☐ Lower secondary education is **not** compulsory.

☒ Lower secondary education is free of charge.

☐ Lower secondary education is **not** free of charge.

☐ Upper secondary education is compulsory.

☒ Upper secondary education is **not** compulsory.

☐ Upper secondary education is free of charge

☒ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

[Compulsory School Act no. 91/2008.](#)

[Upper-Secondary Education Act no. 92/2008.](#)

- National Curriculum Guide for Compulsory and Upper-Secondary Schools, see: adalnamskra.is, namskra.is.

Students at the upper-secondary level pay a registration fee and are responsible for the cost of textbooks and other learning materials such as laptops.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

☒ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

The legal age in Iceland is 18. According to employment legislation and regulation on child labour the minimum age for employment is mostly aligned with compulsory education, see:

[Act on Working Terms and Pension Rights Insurance, No 55/1980](#)
[Regulation on the work of children and young people, No 46/1999](#)

- What challenges were encountered in realizing secondary education?

- | | |
|---|--|
| ☐ Limited access | ☒ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low readiness of primary graduates |
| ☒ High dropout rates | ☐ Low number of professionally trained teachers |
| ☐ Poor quality programmes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

Learning outcomes at the lower-secondary level have declined in recent years:
PISA score in reading has declined from 507 in 2000 to 436 in 2022.
PISA score in mathematics has declined from 515 in 2000 to 459 in 2022.
PISA score in science has declined from 491 in 2000 to 447 in 2022.

Iceland has a high percentage of youths, age 18-24, that have not finished upper-secondary education or are still in school (16%).

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural

³⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁴⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

- ☐ Higher education is free of charge
- ☒ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ☒ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☒ Higher education is accessible through credit transfer system between states
- ☒ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).
- ☐ Other:

Students at the higher education level pay a small registration fee.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

[Higher Education Act no. 63/2006](#), establishes the general framework for higher education institutions.

[Public Higher Education Institutions Act no. 82/2008](#) describes rules and guidelines concerning the administration of each institution.

[Act on Student Education Fund no. 60/2020](#). It's purpose is to provide students the opportunity to study, regardless of their economic or social status by providing financial assistance in the form of student loans and grants

A [Policy on Public Universities](#) is set to safeguard the activities of the public universities by establishing a collaborative network.

Public universities charge an annual registration fee of ISK 75,000. Private universities may charge tuition fees.

- What challenges were encountered in realizing higher education?

- ☐ Limited access
- ☒ Issues of equity and inclusion
- ☐ Poor quality programmes
- ☐ Low number of professionally trained professors
- ☒ Insufficient mechanisms to ensure smooth transition from secondary to tertiary

☐ Poor learning outcomes

☒ Other:

Lack of quantitative data/information

- Please elaborate. Brief quantitative information may be added.

The Ministry of Higher Education, Science and Innovation is developing a platform designed to serve as a comprehensive information hub for all university programs available in Iceland. This platform aims to empower individuals with detailed information, aiding them in making well-informed decisions about their academic paths and possibilities. This initiative is intended to assist both students and higher education institutions in transitioning from secondary to tertiary education by presenting a diverse selection of study courses in one place.

Future developments will include an application portal for all universities and additional tools such as interest analysis tests and connections to various university-related services. The ministry is also developing a dashboard with quantitative information from universities based on well-defined concepts and metrics. This dashboard will enable the government to measure the success of initiatives for inclusion and equity in the sector and, if necessary, to follow up in a more targeted manner

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☐ Provision of literacy programmes
- ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of professional training including reskilling and upskilling programmes
- ☒ Recognition, validation and certification of non-formal and informal learning
- ☒ Provision of free of charge career guidance and counselling

- ☐ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

- Please elaborate further on the measures taken:

Adult general education and vocational education and training for adults in Iceland range from non-formal education to qualifying general education and continuing vocational training. It covers both publicly funded, workplace or union funded as well as private education programmes and courses. There is a long-standing tradition of improving the competences of the workforce beyond compulsory stages of education and the Icelandic system is generally diverse, with many options, programmes and modes of study serving the needs of many different groups. Some offer second chances so that young adults and lifelong learners can return to education and training later in life with the syllabus and examinations are adapted to the experience, interest and the prior formal and non-formal learning of the individual. In many cases, the programmes are structured in such a way that the level of qualification can be compared to levels in the mainstream education system.

Iceland is above the EU's benchmark for the proportion of adults (25-64) participating in education and training, according to the 2019 EU Labour Force Survey (EU LDS). Against the EU-27 average of 10.8% of adults participating in education and training during the four weeks prior to the survey of 2019, this rate stood at 22.2 % for Iceland.

- What challenges were encountered in realizing adult learning and education?

- | | |
|---|--|
| ☐ Limited access | ☒ Limited funding |
| ☐ Issues of equity and inclusion | ☐ Poor learning outcomes |
| ☐ Poor quality programmes | ☒ Low number of professionally trained educators |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

The legal framework for adults who have not finished studies at the upper-secondary level nor have other kind of formal qualifications can be found in the Act on Adult Education from 2010. That act is seen as the 5th pillar of the educational system and is characterised by more informal approach to education and training. The main services according to the Act are accredited courses, of various length, to enhance basic skills, employability and career development of the target group. That Act also stipulates the recognition of prior learning process (RPL) and educational and vocational guidance for adults all over the country. The services are mostly run by Lifelong learning Centres and private educational providers. Therefore, the course fees are higher than in public schools but in many cases individuals get supported or refunded by various Continuous Vocational Training funds. Because of rapid societal, technological and demographic changes the Act needs updating. The main challenges are to simplify the system and make it more

transparent regarding funding, accreditation and quality measures. New target groups need to be addressed in a legal framework like immigrants and adults with disabilities or in rehabilitation. The overall participation in courses also need to increase by offering relevant vocational courses, e.g. to meet the demands of the labour market, and in order to increase the nation's educational levels and enrich peoples lives with with opportunities to reskill, upskill and build up lifelong and general competences.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

☒ State monitoring and inspections

☒ Health and sanitation

☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))

☒ Infrastructure

☒ Curriculum

☐ Student-teacher ratio

☐ School fees (if relevant)

☐ Other

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

Laws on pre-primary, compulsory and upper secondary education stipulate that the Ministry of Education and Children is to conduct comprehensive external evaluation at these school levels. The rationale is to gather reliable information concerning factors such as quality control in operating schools, the educational achievement and careers of pupils, teaching practices and their impact on educational achievement, communication within schools, and relationships with parties outside schools. Provisions for quality control of teaching and research in higher education are laid down in the Higher Education Act of 2006. The monitoring, evaluation and quality assurance in adult education is explained in the [Adult Education Act no. 27/2010](#).

At pre-primary and compulsory school levels, the municipalities are, by law since 2008, responsible for their own evaluation of schools and school activities.

- What challenges were encountered in realizing quality education?

- | | |
|---|---|
| ☐ Non-supportive or inadequate learning environments | ☐ Low quality educational infrastructure and materials |
| ☐ Violence in schools | ☐ Inadequate parental support to education |
| ☐ Cost of education | ☐ Long distances to schools |
| ☐ Conflicts or crises | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

None of the above applies directly to the quality issues in Iceland.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

- ☒ Teacher training is provided without discrimination.
- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).
- ☒ Initial training and continuous professional development are provided.
- ☒ Minimum standards and qualifications required for the teaching profession.
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession.
- ☒ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ☐ Establishment of performance monitoring systems.
- ☐ Measures taken to increase women in leadership positions in education.
- ☐ Other:

- Please elaborate on each of the measures taken:

Recruitment of teachers

In Spring 2019, the Icelandic government launched a 5-year recruitment campaign to tackle the growing shortage of teachers. The initiative was formed in wide collaboration with the main stakeholders; The Icelandic Teacher's Union, the municipalities, the Universities that offer teacher training and other stakeholders.

The goal of the initiative is to:

- increase the number of qualified teachers at all school levels,
- strengthen the occupational training of future teachers,
- create incentives for teachers-in-training to finish their studies on time and to prevent drop-out,
- professional support to newly qualified teachers and teachers-in-training (mentoring program).

Four years have passed since the campaign was launched and there is clear evidence of positive progress towards the goals.

One of the indicators highlighting the effectiveness of the campaign is the number of graduated teachers each year. The increase in 2022 compared to the average between 2015 and 2019, is 160%.

According to recent statistics the salaries of teachers have somewhat fallen behind other professions with similar educational requirements.

- What challenges were encountered in the education personnel?

- | | |
|---|---|
| ☒ Shortages of teaching staff | ☐ Low quality educational infrastructure and materials |
| ☒ Lack of qualified, trained and motivated teaching staff | ☐ High student – teacher ratio |
| ☐ Lack of training centres | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

Shortage of qualified teachers is a challenge at the pre-primary and compulsory level. The percentage of qualified teachers at the pre-primary level is currently around 25%. The comparable percentage for the compulsory level is 81%.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

☒ Curriculum includes human rights education.

☒ Educational and/or extracurricular activities are organized on human rights education.

☐ Other:

- Please elaborate on each of the measures taken:

The National Curriculum Guide for pre-primary, compulsory and upper-secondary education defines the essence of the educational policy in Iceland. The pillars are “health and wellbeing”, “literacy”, “sustainability”, “democracy and human rights”, “equality” and “creativity”. Democracy and human rights are thus to be reflected in teaching and learning at these school levels.

In 2013, the Convention on the Rights of the Child was incorporated directly into Icelandic legislation, along with the first two Optional Protocols.

In order to take a more systematic approach to the implementation of the Convention, a policy and an action plan - Child-Friendly Iceland – was adopted by Parliament in June 2021. (<https://www.althingi.is/altext/151/s/1702.html>)

The Action Plan includes diverse, scheduled and financed actions, that among others aim at increasing child participation, the development and implementation of a child rights impact assessment for the government, and education on children’s rights.

One of the many projects that fall under the action plan is Child Friendly Municipalities in Iceland - a project that aids municipalities in systematic implementation of the Convention.

The Ministry of Education and Children and UNICEF Iceland are partners in the project that already reaches 55% of all children in the country.

Office of the Ombudsman for Children is also involved in monitoring the implementation of the Convention on the Rights of the Child (see <https://www.barn.is/netid-samfelagsmidlar-og-born/stafrænt-umhverfi/vernd-barna-i-stafrænu-umhverfi>)

3.4 Non-state actors in education

⁴¹

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☒ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. Please specify:

According to the [Pre-school Act](#) the same legal provisions apply to private and public institutions.

According to the [Compulsory School Act](#) municipalities are to make service agreements with private schools. This service agreement is to stipulates that the schools are to have a school curriculum guide consistent with the National Curriculum Guide. Evaluation and quality assurance pursuant to the same conditions as public schools and Services provided to pupils based on an assessment of their special needs.

☐ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). Please specify:

☒ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. Please specify:

Freedom of religion clause in the Icelandic Constitution.

☒ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered:

☒ Registration

☒ State monitoring and inspections

☒ Qualifications of teachers

☒ Health and sanitation

☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools)

☒ Infrastructure

☒ Curriculum

☐ Student-teacher ratio

☒ School fees

⁴² Private, faith-based, NGOs, community actors.

⁴³ See: Article/Paragraph 1(1).

☒ School closures

☐ Other

- Please elaborate:

- What challenges were encountered in non-state education provision?

☐ Low quality educational infrastructure and materials

☐ Issues in terms of equity and inclusion

☐ Low number of professionally trained teachers

☒ Weak government regulatory and monitoring capacity

☐ High student – teacher ratio

☐ Other:

- Please elaborate. Brief quantitative information may be added.

17% of children at pre-primary level are in private schools

2% of compulsory level students attend private schools.

Approximately 20% of upper-secondary level students attend private schools.

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

☒ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

The Acts on Compulsory Schools and Upper-Secondary schools explicitly state the importance of ICT in education and the National Curriculum Guide for these school level outlines how it is to be integrated into teaching and learning.

⁴⁴

Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

☒ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

☐ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.

☒ Measures to remove barriers to accessing digital content⁴⁵, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

☒ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

☒ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

☒ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

☐ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

Iceland has implemented the EU's GDPR framework for privacy and data protection that schools are to follow.

The state provides digital textbooks to compulsory level schools and follows quality and inclusion processes in their production and offerings. Those quality standards only apply to the digital material that is published by the Directorate of Education, but not to resources that are acquired from private parties by schools on the pre-primary and upper-secondary levels or by municipalities.

Initial teacher education (ITE) programmes for general subject teachers contain training on the use of digital resources for teaching. Teachers are offered in-service training on the use of digital resources for teaching.

High-speed internet access is provided to all school. Municipalities provide pre-primary and compulsory level schools with digital devices. At the upper-secondary level schools follow a mixed strategy, where some students use private devices but schools provide devices for students who lack private access.

⁴⁵ Lack of internet connection, basic infrastructure or devices.

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|---|--|
| ☒ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | ☐ Limited access to internet and/or electricity |
| ☐ Lack of equity and inclusion in digital learning solutions | ☐ Limited access to hardware (devices, chargers, etc.) |
| ☐ inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks | ☒ Difficulty in regulating the use of digital education solutions |
| ☐ Other: | ☒ Difficulty in sustainably financing digital education solutions at national scale |
| | ☒ Lack of digital skills development for meaningful use of digital technology in teaching practice |
| | ☒ Disjointed or fragmented solutions that are not centrally systematized or regulated |

- Please elaborate. Brief quantitative information may be added.

The Icelandic school system is decentralized where different municipalities make decisions on the digital technology on the pre-primary and compulsory level. At the upper-secondary level schools have a high degree of autonomy on their technological environment. As a results interoperability and integration of systems is limited.

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

- ☐ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.
- ☒ Monitoring results are made public. Please provide the link:

Reports on external review of pre-primary, compulsory and upper-secondary schools are public: see: <https://mms.is/skyrslur>

- ☒ Monitoring processes are participatory, inclusive and regular.
- ☒ Sector-wide and multisector approach is adopted to education governance.
- ☒ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.
- ☒ The decision-making process for the allocation of resources to education is transparent.
- ☐ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.
- ☒ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

Monitoring processes are now under revision, but have been based on self-evaluation by schools, that is to be inclusive and participatory. Self-evaluation forms the basis of an external review organized by the state and/or local authorities.

Municipalities are responsible for the running of pre-primary and compulsory schools and financial allocations are part of their public budgeting for education. Financial allocation models have been developed jointly by the state and local authorities with special emphasis on inclusion. At the upper-secondary and higher education levels, budgeting follows a model where funding per student is determined by transparent criteria.

Recent revisions of school services and support services for children emphasise the cooperation between the state and local authorities and a multi-sector in the provision of services, see: [Act on the Integration of Services in the Interest of Children's Prosperity No 86/2021](#)

- What challenges were encountered in terms of governance?

- | | |
|--|--|
| ☐ Budgetary constraints | ☐ Absence of supportive/ inconsistent/obsolete legal and policy environment |
| ☐ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels | ☒ Lack or weakness of monitoring systems – including the lack of reliable data |
| ☐ Poor dialogue with teachers' trade unions | |
| ☒ Other: | |

There is a challenge for small rural municipalities to provide necessary financial resources and professional services for compulsory schools

- Please elaborate. Brief quantitative information may be added.

The government has established a Dashboard on Childrens' Prosperity based on a regular Youth Survey and other data.

Statistics Iceland provides regular educational statistics, but due to lack of standardization and interoperability between school administration system access to school-level and micro-level data is limited.

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

☒ Translation of the Convention/Recommendation into the national and possibly local languages

☒ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources

☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments

☐ Other: